including the fundamental rights in accordance with the procedure laid down in Article 368. It also provided that a constitutional amendment act will not be a law within the meaning of Article 13(2). Thus, this amendment was aimed at overriding the above judgement.

Kesavananda Bharati Case (1973)

Name of the Case	: Kesavananda Bharati vs. State of Kerala
Year of Judgement	: 1973
Popular Name	: Fundamental Rights case
Related Topic/Issue	: Parliament's power to amend the constitution
Related Article/Schedule	: 13 & 368

Supreme Court Judgement: It overruled its earlier verdict delivered in the *Golak Nath* case[8] (1967). It held that the Parliament, by exercising its constituent power under Article 368, can amend any or all the provisions of the Constitution including those relating to the fundamental rights, but except the 'basic structure' of the constitution. It upheld the validity of the 24th Amendment Act (1971) which inserted Clause (4) in Article 13 and Clause (3) in Article 368. Further, the court held that Sections 2(a) and 2(b) of the 25th Amendment Act (1971) as valid. On the other hand, it declared the first part of Section 3 of the 25th Amendment Act (1971) as valid and the second part[9], as invalid. Moreover, the court validated the 29th Amendment Act (1971).

Impact of the Judgement: This judgement led to the emergence of the doctrine of basic structure of the constitution as a limitation on the amending power of the Parliament. The Supreme Court has applied this doctrine in subsequent cases in examining and deciding the validity of amendments to the constitution. It also enlarged the list of elements of the basic structure in various cases. Further, as a follow-up of this judgement, the 42nd Amendment Act (1976) gave the Parliament an unlimited and uncontrolled power to amend the constitution. This is explained below in the next case.

Indira Nehru Gandhi Case (1975)

Name of the Case	: Indira Nehru Gandhi vs. Raj Narain
Year of Judgement	: 1975
Popular Name	: Election case
Related Topic/Issue	: Basic structure of the constitution
Related Article/Schedule	: 329A (Repealed)[9a]

Supreme Court Judgement: It reaffirmed the applicability of the doctrine of basic structure of the constitution. Accordingly, it struck down clause (4) of Article 329A that was inserted by the 39th Amendment Act (1975). This provision had kept the election disputes involving the Prime Minister and the Speaker of Lok Sabha outside the jurisdiction of all courts. The Supreme Court held that this